

Galaxy

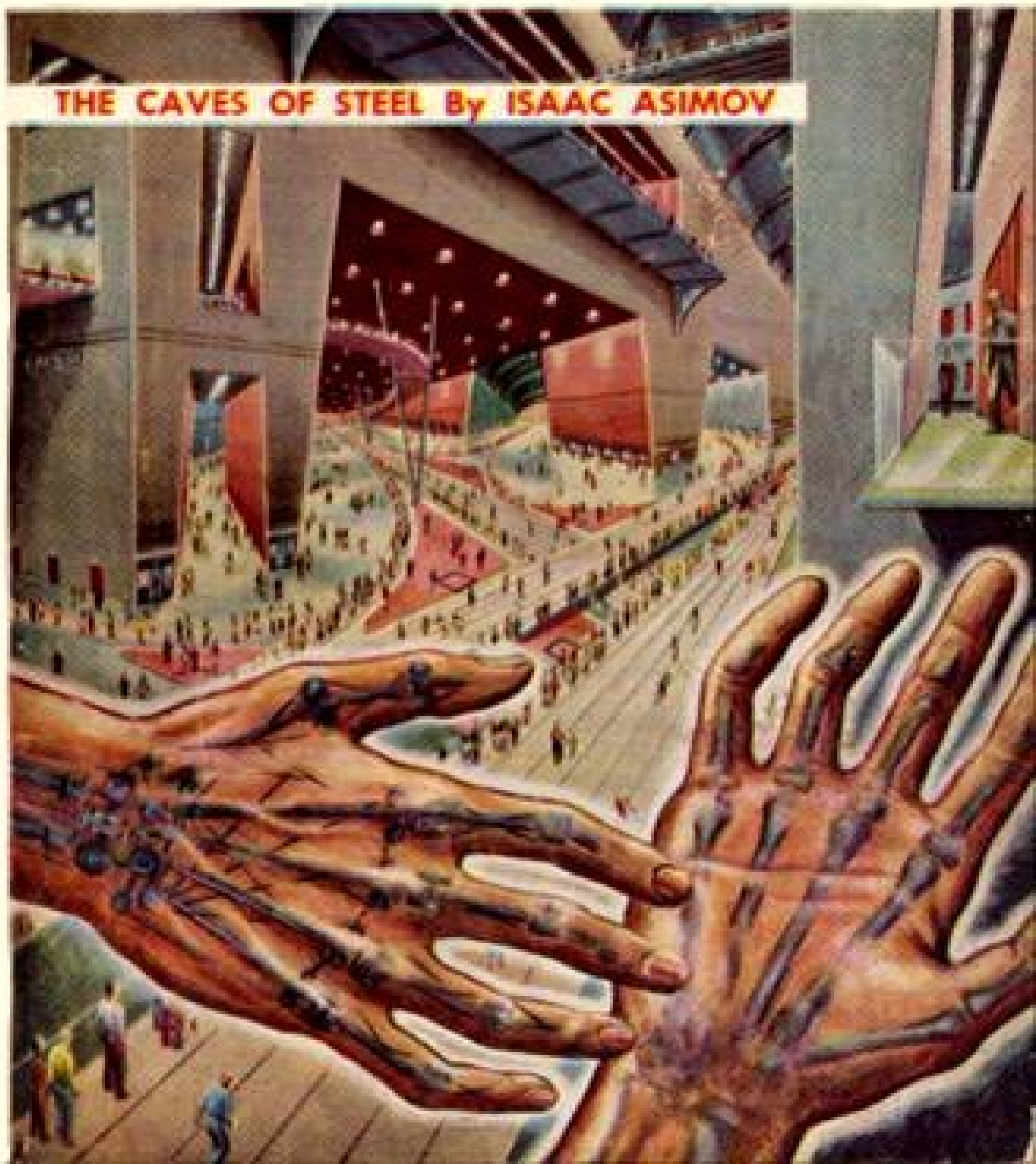
SCIENCE FICTION

OCTOBER 1953

35¢

AND

THE CAVES OF STEEL By ISAAC ASIMOV



Galaxy

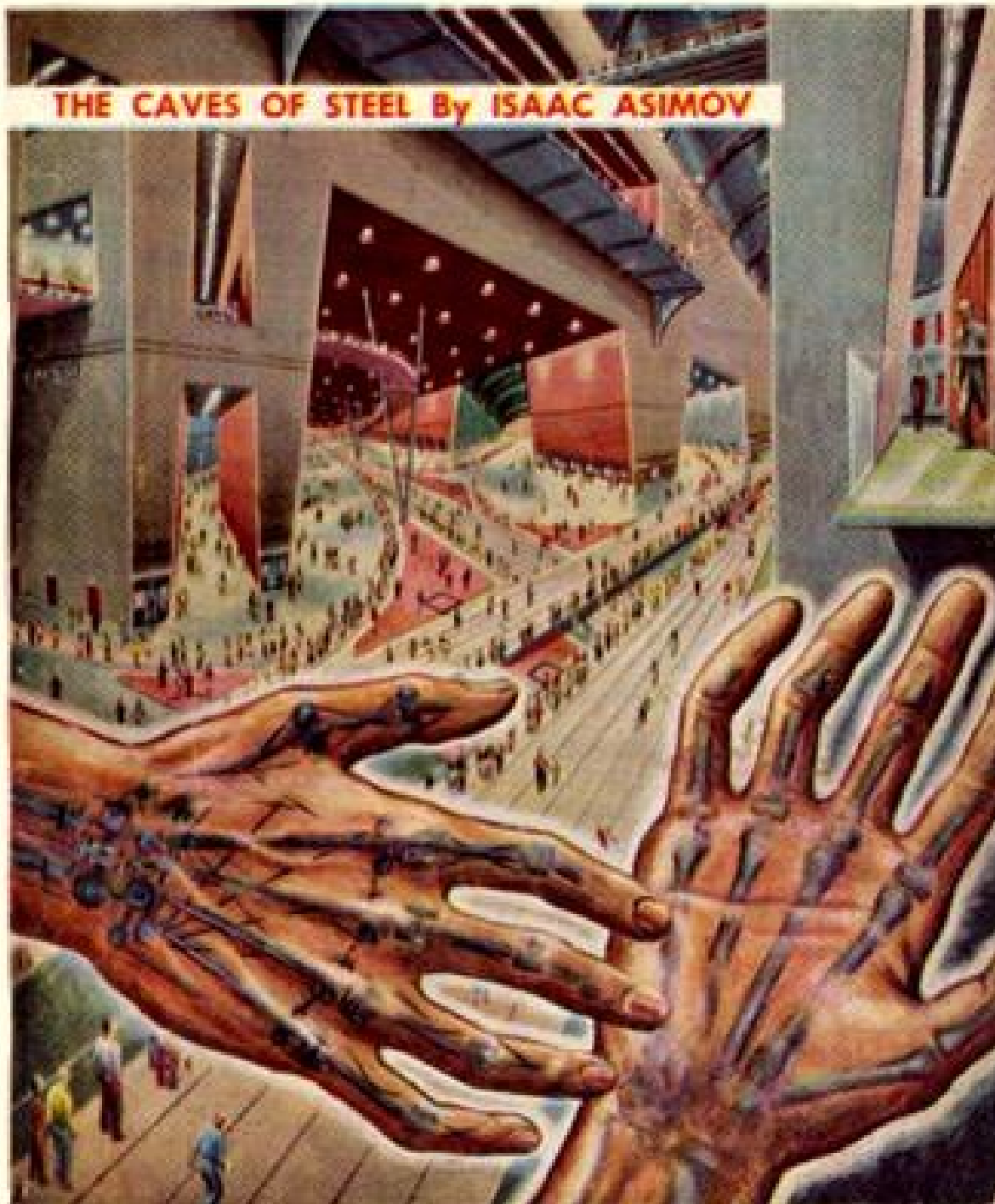
SCIENCE FICTION

OCTOBER 1953

35¢

AND

THE CAVES OF STEEL By ISAAC ASIMOV



The Project Gutenberg eBook of The Model of a Judge

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Model of a Judge

Author: Joseph Samachson

Illustrator: Burchard

Release date: May 19, 2010 [eBook #32431]

Language: English

Other information and formats: www.gutenberg.org/ebooks/32431

Credits: Produced by Greg Weeks, Mary Meehan and the Online Distributed Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK THE MODEL OF
A JUDGE ***

THE MODEL OF A JUDGE

By **WILLIAM MORRISON**

Illustrated by **BURCHARD**

[Transcriber Note: This etext was produced from Galaxy Science Fiction October 1953. Extensive research did not uncover any evidence that the U.S. copyright on this publication was renewed.]

Ronar was reformed, if that was the right word, but he could see that they didn't trust him. Uneasiness spoke in their awkward hurried motions when they came near him; fear looked out of their eyes. He had to reassure himself that all this would pass. In time they'd learn to regard him as one of themselves and cease to recall what he had once been. For the time being, however, they still remembered. And so did he.

Should a former outlaw become a judge—even if he need only pass sentence on a layer cake?

Mrs. Claymore, of the Presiding Committee, was babbling, "Oh, Mrs. Silver, it's so good of you to come. Have you entered the contest?"

"Not really," said Mrs. Silver with a modest laugh. "Of course I don't expect to win against so many fine women who are taking part. But I just thought I'd enter to—to keep things interesting."

"That was very kind of you. But don't talk about not winning. I still remember some of the dishes you served for dinner at your home that time George and I paid you a visit. Mmmmm—they were really delicious."

Mrs. Silver uttered another little laugh. "Just ordinary recipes. I'm so glad you liked them, though."

"I certainly did. And I'm sure the judge will like your cake, too."

"The judge? Don't you usually have a committee?"

He could hear every word. They had no idea how sharp his sense of hearing was, and he had no desire to disconcert them further by letting them know. He could hear every conversation taking place in ordinary tones in the large reception room. When he concentrated he could make out the whispers. At this point he had to concentrate, for Mrs. Claymore leaned over and breathed into her friend's attentive ear.



"My dear, haven't you heard? We've had such trouble with that committee—there were such charges of favoritism! It was really awful."

"Really? But how did you find a judge then?"

"Don't look now—no, I'll tell you what to do. Pretend I said something funny, and throw your head back and laugh. Take a quick glance at him while you do. He's sitting up there alone, on the platform."

Mrs. Silver laughed gracefully as directed, and her eyes swept the platform. She became so excited, she almost forgot to whisper.

"Why, he's—"

"Shhh. Lower your voice, my dear."

"Why—he isn't human!"

"He's supposed to be—now. But, of course, that's a matter of opinion!"

"But who on Earth thought of making him judge?"

"No one on Earth. Professor Halder, who lives over on that big asteroid the other side of yours, heard of the troubles we had, and came up with the suggestion. At first it seemed absurd—"

"It certainly seems absurd to me!" agreed Mrs. Silver.

"It was the only thing we could do. There was no one else we could trust."

"But what does he know about cakes?"

"My dear, he has the most exquisite sense of taste!"

"I still don't understand."

"It's superhuman. Before we adopted Professor Halder's suggestion, we gave him a few tests. The results simply left us gasping. We could mix all sorts of spices—the most delicate, most exotic herbs from Venus or Mars, and the strongest, coarsest flavors from Earth or one of the plant-growing asteroids—and he could tell us everything we had added, and exactly how much."

"I find that hard to believe, Matilda."

"Isn't it? It's honestly incredible. If I hadn't seen him do it myself, I wouldn't have believed it."

"But he doesn't have human preferences. Wasn't he—wasn't he—"

"Carnivorous? Oh, yes. They say he was the most vicious creature imaginable. Let an animal come within a mile of him, and he'd scent it and be after it in a flash. He and the others of his kind made the moon he came from uninhabitable for any other kind of intelligent life. Come to think of it, it may have been the very moon we're on now!"

"Really?"

"Either this, or some other moon of Saturn's. We had to do something about it. We didn't want to kill them off, naturally; that would have been the easiest way, but so uncivilized! Finally, our scientists came up with the suggestion for psychological reforming. Professor Halder told us how difficult it all was, but it seems to have worked. In his case, at least."

Mrs. Silver stole another glance. "Did it? I don't notice any one going near him."

"Oh, we don't like to tempt fate, Clara. But, if there were really any danger, I'm sure the psychologists would never have let him out of their clutches."

"I hope not. But psychologists take the most reckless risks sometimes—with other people's lives!"

"Well, there's one psychologist who's risking his own life—and his own wife, too. You know Dr. Cabanis, don't you?"

"Only by sight. Isn't his wife that stuck-up thing?"

"That's the one. Dr. Cabanis is the man who had actual charge of reforming him. And he's going to be here. His wife is entering a cake."

"Don't tell me that she really expects to win!"

"She bakes well, my dear. Let's give the she-devil her due. How on Earth an intelligent man like Dr. Cabanis can stand her, I don't know, but, after all, he's the psychologist, not I, and he could probably explain it better than I could."

Ronar disengaged his attention.

So Dr. Cabanis was here. He looked around, but the psychologist was not in sight. He would probably arrive later.

The thought stirred a strange mixture of emotions. Some of the most painful moments of his life were associated with the presence of Dr. Cabanis. His early life, the life of a predatory carnivore, had been an unthinkingly happy

one. He supposed that he could call his present life a happy one too, if you weren't overly particular how you defined the term. But that period in between!

That had been, to say the least, painful. Those long sessions with Dr. Cabanis had stirred him to the depths of a soul he hadn't known he possessed. The electric shocks and the druggings he hadn't minded so much. But the gradual reshaping of his entire psyche, the period of basic instruction, in which he had been taught to hate his old life so greatly that he could no longer go back to it even if the way were open, and the conditioning for a new and useful life with human beings—that was torture of the purest kind.

If he had known what was ahead of him, he wouldn't have gone through it at all. He'd have fought until he dropped, as so many of the others like him did. Still, now that it was over, he supposed that the results were worth the pain. He had a position that was more important than it seemed at first glance. He exercised control over a good part of the food supply intended for the outer planets, and his word was trusted implicitly. Let him condemn an intended shipment, and cancellation followed automatically, without the formality of confirmation by laboratory tests. He was greatly admired. And feared.

They had other feelings about him too. He overheard one whisper that surprised him. "My dear, I think he's really handsome."

"But, Charlotte, how can you say that about someone who isn't even human!"

"He looks more human than many human beings do. And his clothes fit him beautifully. I wonder—does he have a tail?"

"Not that I know of."

"Oh." There was disappointment in the sound. "He looks like a pirate."

"He was a kind of wolf, they tell me. You'd never guess, to see him, that he ran on all fours, would you?"

"Of course not. He's so straight and dignified."

"It just shows you what psychology can do."

"Psychology, and a series of operations, dear ladies," he thought sarcastically. "Without them I wouldn't be able to stand so nice and straight with the help of all the psychologists in this pretty little solar system of ours."

From behind a potted Martian nut-cactus came two low voices—not whispers this time. And there was several octaves difference in pitch between them. One male, one female.

The man said, "Don't be worried, sweetheart. I'll match your cooking and baking against anybody's."

There was a curious sound, between a click and a hiss. What human beings called a kiss, he thought. Between the sexes, usually an indication of affection or passion. Sometimes, especially within the ranks of the female sex, a formality behind which warfare could be waged.

The girl said tremulously, "But these women have so much experience. They've cooked and baked for years."

"Haven't you, for your own family?"

"Yes, but that isn't the same thing. I had to learn from a cookbook. And I had no one with experience to stand over me and teach me."

"You've learned faster that way than you'd have done with some of these old hens standing at your elbow and giving you directions. You cook too well. I'll be fat in no time."

"Your mother doesn't think so. And your brother said something about a bride's biscuits—"

"The older the joke, the better Charles likes it. Don't let it worry you." He kissed her again. "Have confidence in yourself, dear. You're going to win."

"Oh, Gregory, it's awfully nice of you to say so, but really I feel so unsure of myself."

"If only the judge were human and took a look at you, nobody else would stand a chance. Have I told you within the last five minutes that you're beautiful?"

Ronar disengaged his attention again. He found human love-making as repulsive as most human food.

He picked up a few more whispers. And then Dr. Cabanis came in.

The good doctor looked around, smiled, greeted several ladies of his acquaintance as if he were witnessing a private strip-tease of their souls, and then came directly up to the platform. "How are you, Ronar?"

"Fine, Doctor. Are you here to keep an eye on me?"

"I hardly think that's necessary. I have an interest in the results of the judging. My wife has baked a cake."

"I had no idea that cake-baking was so popular a human avocation."

"Anything that requires skill is sure to become popular among us. By the way, Ronar, I hope you don't feel hurt."

"Hurt, Doctor? What do you mean?"

"Come now, you understand me well enough. These people still don't trust you. I can tell by the way they keep their distance."

"I take human frailty into account, Doctor. Frailty, and lack of opportunity. These men and women haven't had the opportunity for extensive psychological treatment that I've had. I don't expect too much of them."

"You've scored a point there, Ronar."

"Isn't there something that can be done for them, Doctor? Some treatment that it would be legal to give them?"

"It would have to be voluntary. You see, Ronar, you were considered only an animal, and treatment was necessary to save your life. But these people are supposed to have rights. One of their rights is to be left alone with their infirmities. Besides, none of them are seriously ill. They hurt no one."

For a second Ronar had a human temptation. It was on the tip of his tongue to say, "Your wife too, Doctor? People wonder how you stand her." But he resisted it. He had resisted more serious temptations.

A gong sounded gently but pervasively. Dr. Cabanis said, "I hope you have no resentment against me at this stage of the game, Ronar. I'd hate to have my wife lose the prize because the judge was prejudiced."

"Have no fear, Doctor. I take professional pride in my work. I will choose only the best."

"Of course, the fact that the cakes are numbered and not signed with the names of their creators will make things simpler."

"That would matter with human judges. It does not affect me."

Another gong sounded, more loudly this time. Gradually the conversation stopped. A man in a full dress suit, with yellow stripes down the sides of his shorts, and tails hanging both front and rear, climbed up on the platform. His eyes shone with a greeting so warm that the fear was almost completely hidden. "How are you, Ronar? Glad to see you."

"I'm fine, Senator. And you?"

"Couldn't be better. Have a cigar."

"No, thank you. I don't smoke."

"That's right, you don't. Besides, I'd be wasting the cigar. You don't vote!" He laughed heartily.

"I understand that they're passing a special law to let—people—like me vote at the next election."

"I'm for it, Ronar, I'm for it. You can count on me."

The chairman came up on the platform, a stout and dignified woman who smiled at both Ronar and the Senator, and shook hands with both without showing signs of distaste for either. The assembled competitors and spectators took seats.

The chairman cleared her throat. "Ladies and gentlemen, let us open this meeting by singing the *Hymn of All Planets*."

They all rose, Ronar with them. His voice wasn't too well adapted to singing, but neither, it seemed, were most of the human voices. And, at least, he knew all the words.

The chairman proceeded to greet the gathering formally, in the name of the Presiding Committee.

Then she introduced Senator Whitten. She referred archly to the fact that the Senator had long since reached the age of indiscretion and had so far escaped marriage. He was an enemy of the female sex, but they'd let him speak to them anyway.

Senator Whitten just as archly took up the challenge. He had escaped more by good luck—if you could call it good—than by good management. But he was sure that if he had ever had the fortune to encounter some of the beautiful ladies here this fine day, and to taste the products of their splendid cooking and baking, he would have been a lost man. He would long since have committed polygamy.

Senator Whitten then launched into a paean of praise for the ancient art of preparing food.

Ronar's attention wandered. So did that of a good part of the audience. His ears picked up another conversation, this time whispered between a man and a woman in the front row.

The man said, "I should have put your name on it, instead of mine."

"That would have been silly. All my friends know that I can't bake. And it would look so strange if I won."

"It'll look stranger if I win. I can imagine what the boys in the shop will say."

"Oh, the boys in the shop are stupid. What's so unmanly in being able to cook and bake?"

"I'm not anxious for the news to get around."

"Some of the best chefs have been men."

"I'm not a chef."

"Stop worrying." There was exasperation in the force of her whisper. "You won't win anyway."

"I don't know. Sheila—"

"What?"

"If I win, will you explain to everybody how manly I really am? Will you be my character witness?"

She repressed a giggle.

"If you won't help me, I'll have to go around giving proof myself."

"Shh, someone will hear you."

Senator Whitten went on and on.

Ronar thought back to the time when he had wandered over the surface of this, his native satellite. He no longer had the old desires, the old appetites. Only the faintest of ghosts still persisted, ghosts with no power to do harm. But he could remember the old feeling of pleasure, the delight of sinking his teeth into an animal he had brought down himself, the savage joy of gulping the tasty flesh. He didn't eat raw meat any more; he didn't eat meat

at all. He had been conditioned against it. He was now half vegetarian, half synthetarian. His meals were nourishing, healthful, and a part of his life he would rather not think about.

He took no real pleasure in the tasting of the cakes and other delicacies that born human beings favored. His sense of taste had remained keen only to the advantage of others. To himself it was a tantalizing mockery.

Senator Whitten's voice came to a sudden stop. There was applause. The Senator sat down; the chairman stood up. The time for the judging had arrived.

They set out the cakes—more than a hundred of them, topped by icings of all colors and all flavors. The chairman introduced Ronar and lauded both his impartiality and the keenness of his sense of taste.

They had a judging card ready. Slowly, Ronar began to go down the line.

They might just as well have signed each cake with its maker's name. As he lifted a portion of each to his mouth, he could hear the quick intake of breath from the woman who had baked it, could catch the whispered warning from her companion. There were few secrets they could keep from him.

At first they all watched intently. When he had reached the fifth cake, however, a hand went up in the audience. "Madam Chairman!"

"Please, ladies, let us not interrupt the judging."

"But I don't think the judging is right. Mr. Ronar tastes hardly more than a crumb of each!"

"A minimum of three crumbs," Ronar corrected her. "One from the body of the cake, one from the icing, and an additional crumb from each filling between layers."

"But you can't judge a cake that way! You have to eat it, take a whole mouthful—"

"Please, madam, permit me to explain. A crumb is all I need. I can analyze the contents of the cake sufficiently well from that. Let me take for instance

Cake Number 4, made from an excellent recipe, well baked. Martian granis flour, goover eggs, tingan-flavored salt, a trace of Venusian orange spice, synthetic shortening of the best quality. The icing is excellent, made with rare dipentose sugars which give it a delightful flavor. Unfortunately, however, the cake will not win first prize."

An anguished cry rose from the audience. "Why?"

"Through no fault of your own, dear lady. The purberries used in making the filling were not freshly picked. They have the characteristic flavor of refrigeration."

"The manager of the store swore to me that they were fresh! Oh, I'll kill him, I'll murder him—"

She broke down in a flood of tears.

Ronar said to the lady who had protested, "I trust, madam, that you will now have slightly greater confidence in my judgment."

She blushed and subsided.

Ronar went on with the testing. Ninety per cent of the cakes he was able to discard at once, from some fault in the raw materials used or in the method of baking. Eleven cakes survived the first elimination contest.

He went over them again, more slowly this time. When he had completed the second round of tests, only three were left. Number 17 belonged to Mrs. Cabanis. Number 43 had been made by the man who argued with his wife. Number 64 was the product of the young bride, whom he had still not seen.

Ronar paused. "My sense of taste is somewhat fatigued. I shall have to ask for a short recess before proceeding further."

There was a sigh from the audience. The tension was not released, it was merely relaxed for a short interval.

Ronar said to the chairman, "I should like a few moments of fresh air. That will restore me. Do you mind?"

"Of course not, Mr. Ronar."

He went outside. Seen through the thin layer of air which surrounded the group of buildings, and the plastic bubble which kept the air from escaping into space, the stars were brilliant and peaceful. The Sun, far away, was like a father star who was too kind to obliterate his children. Strange, he thought, to recall that this was his native satellite. A few years ago it had been a different world. As for himself, he could live just as well outside the bubble as in it, as well in rarefied air as in dense. Suppose he were to tear a hole in the plastic—

Forbidden thoughts. He checked himself, and concentrated on the three cakes and the three contestants.

"You aren't supposed to let personal feelings interfere. You aren't even supposed to know who baked those cakes. But you know, all right. And you can't keep personal feelings from influencing your judgment.

"Any one of the cakes is good enough to win. Choose whichever you please, and no one will have a right to criticize. To which are you going to award the prize?

"Number 17? Mrs. Cabanis is, as one of the other women has so aptly termed her, a bitch on wheels. If she wins, she'll be insufferable. And she'll probably make her husband suffer. Not that he doesn't deserve it. Still, he thought he was doing me a favor. Will I be doing him a favor if I have his wife win?

"Number 64, now, is insufferable in her own right. That loving conversation with her husband would probably disgust even human ears. On the other hand, there is this to be said for her winning, it will make the other women furious. To think that a young snip, just married, without real experience in home-making, should walk away with a prize of this kind!

"Ah, but if the idea is to burn them up, why not give the prize to Number 43? They'd be ready to drop dead with chagrin. To think that a mere man should beat them at their own specialty! They'd never be able to hold their

heads up again. The man wouldn't feel too happy about it, either. Yes, if it's a matter of getting back at these humans for the things they've done to me, if it's a question of showing them what I really think of them, Number 43 should get it.

"On the other hand, I'm supposed to be a model of fairness. That's why I got the job in the first place. Remember, Ronar? Come on, let's go in and try tasting them again. Eat a mouthful of each cake, much as you hate the stuff. Choose the best on its merits."

They were babbling when he walked in, but the babbling stopped quickly. The chairman said, "Are we ready, Mr. Ronar?"

"All ready."

The three cakes were placed before him. Slowly he took a mouthful of Number 17. Slowly he chewed it and swallowed it. Number 43 followed, then Number 64.

After the third mouthful, he stood lost in thought. One was practically as good as another. He could still choose which he pleased.

The assemblage had quieted down. Only the people most concerned whispered nervously.

Mrs. Cabanis, to her psychologist husband: "If I don't win, it'll be your fault. I'll pay you back for this."

The good doctor's fault? Yes, you could figure it that way if you wanted to. If not for Dr. Cabanis, Ronar wouldn't be the judge. If Ronar weren't the judge, Mrs. C. would win, she thought. Hence it was all her husband's fault. Q.E.D.

The male baker to his wife: "If he gives the prize to me, I'll brain him. I should never have entered this."

"It's too late to worry now."

"I could yell 'Fire'," he whispered hopefully. "I could create a panic that would empty the hall. And then I'd destroy my cake."

"Don't be foolish. And stop whispering."

The young post-honeymooning husband: "You're going to win, dear; I can feel it in my bones."

"Oh, Greg, please don't try to fool me. I've resigned myself to losing."

"You won't lose."

"I'm afraid. Put your arm around me, Greg. Hold me tight. Will you still love me if I lose?"

"Mmmm." He kissed her shoulder. "You know, I didn't fall in love with you for your cooking, sweetheart. You don't have to bake any cakes for me. You're good enough to eat yourself."

"He's right," thought Ronar, as he stared at her. "The man's right. Not in the way he means, but he's right." And suddenly, for one second of decision, Ronar's entire past seemed to flash through his mind.

The young bride never knew why she won first prize.

*** END OF THE PROJECT GUTENBERG EBOOK THE MODEL OF A
JUDGE ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.